



Timberland Regional **LIBRARY**

Board of Trustees Meeting Minutes

April 22, 2020 - 5:30 p.m.

Timberland Regional Library
Administrative Service Center
415 Tumwater Blvd. SW
Tumwater, WA 98501

Brenda Hirschi, *President*, Mason County

Bob Hall, *President Elect*, Pacific County

Corby Varness, Grays Harbor County

Brian Zylstra, Lewis County

Hal Blanton, *At Large*, Lewis County

Kathleen Varney, *At Large*, Thurston County

Present Board via Zoom Conference:

Brenda Hirschi, Corby Varness, Hal Blanton, Kathy Varney, Brian Zylstra, Bob Hall

Present Staff via Zoom Conference:

Cheryl Heywood, Eric Lowell, Kendra Jones; Brenda Lane, Andrea Heisel, Rose Enos-Weedmark; recorder

President Brenda Hirschi called the Regular Board Meeting to order at 5:30 p.m.

AGENDA:

- 1. Pledge of Allegiance-** Trustee Hall led the Pledge of Allegiance
- 2. Welcome and Board Introductions**
- 3. Approval of Agenda**

20-15 – CORBY VARNESSE MADE A MOTION TO APPROVE THE TENTATIVE AGENDA AS PRESENTED. HAL BLANTON SECONDED. MOTION APPROVED.

4. Correspondence

Cheryl reads an email that was received by Trustee Varney and Trustee Hirschi from Civil Arete dated April 16, 2020 concerning a change in the Fund Balance Policy and whether an amendment is appropriate.

5. Public Comments - None.

6. Board Comments

Trustee Zylstra shared an article from April 18, 2020 Saturday Centralia Chronicle written by Natalie Johnson praising TRL's digital offerings and services provided to the public.

Trustee Hall was concerned at the Special Meeting on April 8, 2020, about an item that was brought to the Board, he feels in the future, similar items should be discussed with Cheryl prior to bringing forward at a public meeting.

Trustee Hall commented and provided a brief explanation of the bidding process that he is familiar with, the bids can be viewed if requested by a Trustee. It has been past practice that the staff review and bring forward a recommendation to the Board.

Trustee Hall asks a question concerning how an item was presented to Summit Law.

Trustee Hirschi requests that Trustee Hall's questions be answered during the Policy Committee discussion later in the meeting or during the director's update.

Trustee Varney thanked Trustee Hall for his comments and stated that she is new to the board.

Trustee Varney asks Trustee Hall in the text chat if a trustee should not question policy on the record.

Trustee Varney states that her motivation is to make sure the tax payers who are contributing to TRL get their questions asked and can feel comfortable that we all are aware that we work for them.

7. Executive Director's Report- Cheryl Heywood





Executive Director highlighted the following items:

- April 19-25 is National Library Week. We celebrated virtually with staff at two different coffee zoom chats.
- Our staff is the heart of our organization and thanks them for their great virtual work.
- Library Giving Day is April 23, 2020 and is TRL's first time to participate. We have already begun receiving donations including reoccurring monthly payments. We are very grateful.
- An article shared with the Board titled *10 Questions to Guide Boards Through the Pandemic* by Dambisa Moyo from the Harvard Business Review with topics on how to keep a company culture alive, health and safety of our work force, and more.
- Quarterly January – March OKR's have been updated on website for review.
- Installation of computer tables that was previously on hold is currently underway while the libraries are closed.

Discussion of Executive Director's Report

Trustee Hall asks how referring questions to Summit Law occurred.

Trustee Hirschi replies that two board members and herself had questions that they felt did not fall under utility or public works and our attorney explained there is a separate statute that is not included in our Signatory Policy, that being, electronic data processing and telecommunications, *RCW 39.04.270* and we will be revising our policy to include this.

Trustee Hall asks what authority do three members have to contact our attorney for services and incur an expense at an hourly rate.

Trustee Hirschi replies that she discussed her question with Trustee Zylstra and his advice was that Trustee Hirschi had the authority to contact our attorney directly.

Trustee Hall asks if Trustee Hirschi consulted the Bylaws to indicate that authority.

Trustee Hirschi replies that she did not.

Trustee Hall recalls in the ten years of serving on the Board this would be the first time, in his knowledge, that three Trustees have taken it upon themselves to incur an expense. In the past, Trustees have gone to the attorney but only as a full Board taking action. Trustee Hall suggests that if we are to follow policy, a special meeting could have been called for this discussion.

Trustee Zylstra adds that there were questions after the April 8th Special Meeting and he thought would best be answered by our attorney. He was unaware that that may side-step the Bylaws and was wrong in taking that approach however Trustee Zylstra feels it was a worthwhile question to be answered. Trustee Zylstra states if we went about it incorrectly, we are at fault and should apologize.

Trustee Hall clarifies that the normal procedure would have been to contact the Executive Director with the question and she could pursue.

Trustee Hirschi asks, "What do you want at this point Bob? What will make this right with you?"

Trustee Hall states, "It's water under the bridge," but he would like to point out that he recommends that the Board should rely on the Executive Director to take on these types of matters instead of taking it upon ourselves. Sometimes the level of support for the Director is not there or at a level that he'd like to see it and he thinks in this case the point he is making, is you should have asked Cheryl to consult with the attorney and his guess, is that it would have been no problem.

8. Financial Statements & Highlights Report – Eric Lowell

Financial Director highlighted the following items:





- Property Taxes - \$722,394
- Timber Revenue – \$238,896
- Books and Materials – \$191,939
- Transfer of Funds - \$1.4 MM(approximately) 1st quarter transfer to special purpose funds
 - Technology Fund - \$62,500
 - Unemployment Fund - \$15,046
 - Building Fund – \$1,323,492 MM
- Revenues – at 7%
- Expenditures- at 24 %

Discussion of Finance Report

Trustee Varness asks if Eric thinks it is a possibility that property owners may default on paying their taxes.

Eric states that the only way for them to default would be if the property was owned outright.

Eric states that we probably won't know until June due to the pandemic. And even a better picture in November.

Eric shared that he had attended a webinar concerning the financial impacts of the pandemic and the response was that it is too early to tell what ramifications this will bring.

9. Consent Agenda – Motion for approval

20-16 – BRIAN ZYLSTRA MADE A MOTION TO APPROVE THE CONSENT AGENDA AS PRESENTED. CORBY VARNESSE SECONDED. MOTION APPROVED.

10. Old Business

- a. Extended Access Hours (EAH) Report-Eric Lowell
 - Cheryl shares that this is an update to the EAH previously reported and the discrepancy in financial reporting expenditures.
 - Eric relays that the original quote did not include some items (key fobs and a reader) that was later adjusted to avoid errors in recording patron records.

11. Unfinished Business

- a. MYTRL Update – Kendra Jones
 - 15 school districts signed on.
 - Jessica and Mary are working with ESD 113.
 - The goal is to have every student signed up by the fall 2020.
 - ESD 113 shared with parents how sign up online for the temporary 3 month subscription.

Discussion of TRL Update

Trustee Hall asks how many students are accessing through the school as opposed to TRL website. Kendra explains the tracking system and its difficulty of arriving at a cumulative number as opposed to accessing the website as a unique user. We do know that hundreds of kids are accessing MYTRL through the data statistics.

Cheryl states that we are looking at many ways to partnership with ESD 113. ESD has agreed to add TRL to their various maps on their website that coordinates activities. They also have access to an email grouping of teachers and providers to share messages from TRL.



Kendra also stated that Jessica is working to have parents more aware as opposed to the teachers being the primary accessor.

Trustee Hall is concerned that when he substitute teaches, some high school students are not aware of MYTRL and the services offered.

Kendra will bring forward another update in May.

Cheryl mentions that she recently met with ESD 113, PAC MTN, and Moran Sohl, working with the Students of the Gravity program (students returning to school to achieve their high school diplomas over the age of 18). They were the one of the first to use MYTRL, but they are working on a program to help mandate the use of resources in an orientation to reach all students.

12. New Business

a. Future Board Meeting Locations

- Cheryl recommends a zoom meeting and take it month to month.

20-17 BOB HALL MADE A MOTION TO HAVE THE MAY 27, 2020 REGULAR BOARD MEETING AS A ZOOM MEETING. HALL BLANTON SECONDED. MOTION APPROVED.

13. Committee Reports

a. Executive Director Review Committee – Brenda Hirschi

i. Executive Director 2020 Goals and Results

- Cheryl comments that she worked with Trustees Hirschi, Varness, and Varney to create the comprehensive goals, policy, and procedure.

20-18 CORBY VARNESSE MADE A MOTION TO APPROVE THE EXECUTIVE DIRECTOR 2020 GOALS AND RESULTS AS PRESENTED. BRIAN ZYLSTRA SECONDED. MOTION APPROVED

ii. Appraisal of the Executive Director Policy

20-19 BRIAN ZYLSTRA MADE A MOTION TO APPROVE THE APPRAISAL OF THE EXECUTIVE DIRECTOR POLICY AS PRESENTED. CORBY VARNESSE MOTION SECONDED. MOTION APPROVED.

iii. Appraisal of the Executive Director Procedure

20-20 CORBY VARNESSE MADE A MOTION TO APPROVE THE APPRAISAL OF THE EXECUTIVE DIRECTOR PROCEDURE AS PRESENTED. BRIAN ZYLSTRA SECONDED MOTION. MOTION APPROVED.

b. Policy Committee Report – Hal Blanton

i. Travel Policy

Travel Policy Discussion

Trustee Hall asks who would be the Trustees' supervisor to approve Trustee travel expenditures, Cheryl in a sense is our supervisor. Do we need any clarification or just go by past practice.

Trustee Blanton asks what would be the practice on that and who is our supervisor.



Trustee Varney suggests the acting chairman of the Board be the approver.

Trustee Blanton asks if it should be written in the policy or would it be covered elsewhere.

Eric is currently working on the travel procedure and will note in this procedure that will include a statement that the Board President will approve travel reimbursement of Trustees.

20-21 HAL BLANTON MADE A MOTION TO APPROVE THE TRAVEL POLICY AS PRESENTED. BRENDA HIRSCHI SECONDED MOTION. MOTION APPROVED.

ii. Naming Policy

20-22 HAL BLANTON MADE A MOTION TO APPROVE THE NAMING POLICY AS PRESENTED. CORBY VARNESSE SECONDED MOTION. MOTION APPROVED.

iii. Policies and Procedures Policy

20-23 HAL BLANTON MADE A MOTION TO APPROVE THE POLICIES AND PROCEDURES POLICY AS PRESENTED. CORBY VARNESSE SECONDED MOTION. MOTION APPROVED.

iv. Extended Access Hours Policy (EAH)

- **HAL BLANTON MADE A MOTION TO APPROVE THE EXTENDED ACCESS HOURS POLICY (EAH) AS PRESENTED. CORBY VARNESSE SECONDED.**
- Trustee Varney asks how we know if a patron agrees with the terms and conditions if they are signing anything.
- Trustee Varney shared her concern about minors in the library.
- Cheryl replies that we have shared our concerns with our attorney and insurance broker.
- Trustee Blanton explains to Trustee Varney that there has been a lot of discussion on the topic that the Trustees have had and they are still trying hard to get it right, but those are good questions to keep asking.
- Cheryl recommends the policy approval to be put on hold until we hear back from our attorney.
- **HAL BLANTON WITHDRAWS MOTION. CORBY VARNESSE WITHDRAWS SECOND.**

c. Facilities Committee Report - Corby Varness

- An audit report was presented to the board from the facilities staff and Washington State Department of Archaeology (2019) concerning the facilities conditions.
- Raymond and South Bend being listed as the most critical in staff report.
- Mountain View and Winlock are libraries that have been discussed for re-location.
- The original plan was looking at spending some of the beginning fund balance on repairs to some of these buildings, however with the pandemic we will need to wait.
- Trustee Hall asks if the report has been sent to any of the city owned libraries.
- Brenda informs that the report has only been shared with the Board. Brenda shared that she believes Winlock is a lot more critical than the report states.



- Cheryl reminds the Board of the matching grant that was discussed prior to the pandemic and that is no longer a viable option.
 - Cheryl will be connecting with mayors concerning re-opening process and building conditions.
 - Trustee Varness also reminds the board that the matching grant mandates the building be open for at least 10 years. It is a concern with some of these critical buildings if applying would be prudent to the grant conditions.
- d. Budget Committee Report -Brian Zylstra
- i. Budget Review
- It was requested that the TRL Board provide guidance to Cheryl concerning the 2021 budget to keep the total salary and benefits at 68% of the total budget.
 - Staff to research and work on two options to achieve the 68%. Option one to look at, strictly open hours and FTE. Option two to look at open hours, FTE and a variety of other ways to lower the total budget. Update by early July 2020.
 - Cheryl shares that the Board needs to be thinking about not only our current situation but what it will look like in the next 10, 15, 20 years from now, and that the Board remain open to all things beyond our control and continue to seek input from our staff and communities and prioritize.
 - Trustee Hall asks Trustee Zylstra if we should make a motion on this at this time or put it on hold.
 - Trustee Zylstra believes the 68% motion would be good unless Cheryl has concerns about that.
 - Cheryl requests that the Board not make a vote at this time and let her continue to explore areas for budget options and not be that specific.
 - Trustee Varney suggests that we need to begin plans for any shortfall of revenue in 2021.
 - Trustee Hirschi states that she believes a motion does need to be made at this time in light of what happened after the Capitol Facilities Plan. Trustee Hirschi reviewed the salary and benefits as a percent of actual revenue over the last five years, and there were two years that had barely come in over 68%. Due to the cost cutting that Cheryl has done the actual FTE was a little over 213. Trustee Hirschi believes this motion will empower Cheryl.
 - **BRENDA HIRSCHI MADE A MOTION TO AUTHORIZE THE EXECUTIVE DIRECTOR TO REVIEW THE SALARY AND BENEFITS FOR TRL TO ESTABLISH A 68% OF THE TOTAL BUDGET FOR SALARY AND BENEFITS IN 2021 WITH INITIAL FEEDBACK TO TRUSTEES BY JULY 1, 2020. TO ACCOMPLISH THE AFOREMENTIONED MOTION THE BOARD APPROVES OF THE FOLLOWING: IN REVIEW OF THE SALARY AND BENEFITS CONSIDERATION CAN BE A VARIETY OF LIBRARY OPERATING HOURS, EMPLOYEE FTE, EXTENDED ACCESS HOURS (EAH), BOOKMOBILE SERVICES, THE POSSIBILITY OF LIBRARY CLOSURES AND COULD INCLUDE ADDITIONAL ALTERNATIVE SERVICES. KATHY VARNEY SECONDED.**
 - Trustee Varness would like Cheryl's recommendation to stand and wait before making any motion on this topic and work with the union. We should revisit this and treat it as a discussion at this time. Cheryl is doing these things already.



- Trustee Hirschi states that the Board needs to empower Cheryl due to the blowback of the Capitol Facilities Plan.
- Cheryl states having this discussion is worthwhile.
- Trustee Hirschi asks Cheryl if she feel empowered to look at the issues with our buildings.
- **BOB HALL MOVES TO TABLE THE MOTION. CORBY VARNESSE SECONDED.**
- Trustee Zylstra states he initially brought this forward as something Cheryl would be on board with making a motion, but we can bring it back to the Board.
- **BRENDA HIRSCHI WITHDRAWS THE MOTION.**
- **BOB HALL WITHDRAWS HIS TABLE.**
- Trustee Blanton states that we are self-funded for unemployment and asks if we are eligible for any of the special funding from the federal government.
- Eric states that we are eligible but it is for a short period of time during the pandemic. It is for employers who are laying off employees, the federal government is paying half of the employer's responsibility for unemployment, but for a limited time, which we don't know how long that will be.
- Trustee Varney explains that the motion was meant to be a supportive action to Cheryl from the Board. The Board is in full support of Cheryl to make the tough but strategic plans that need to be made. Trustee Hirschi agrees with Trustee Varney's comments.

14. Final Board Comments

Trustee Hall address' Trustee Varney's text chat comment. His suggestion was that if a trustee thought administration was violating a policy, to be sure to check.

Trustee Varness asks if there is any kind of conflict of interest if she gives to Library Giving Day.

Trustee Varney asks if there is a maximum that an affiliated person can donate.

Cheryl states no.

Cheryl suggests checking with the Trustee Ethics Policy online for donations, or have a family member donate on your behalf.

Trustee Varness is in favor of the organization staying fiscally sound and do it carefully.

Trustee Blanton wants the Board to think about what we want to look like pro-active when this is over.

Trustee Zylstra believes that TRL will come out as winners due to the digital services we provide and gives a shout out to Cheryl and her staff.

Trustee Varney wants be level and upfront with the facts to everyone. Suggests that we can involve staff in the final plans and kudos to Cheryl and her staff.

Cheryl reminds the Board during her interview process that she spoke of bringing TRL together as never before, taking the best ideas from staff and learning from other library systems, from the state, the country, and the world. Never did she imagine that we would have a pandemic when we would have to do just that.

Trustee Hirschi thanks Hal for his comments. Trustee Hirschi explained that she shared with the county commissioners that TRL would have a shortfall before the pandemic due to bargaining agreement and the class and compensation study. We have known for weeks now that cost containment will be an issue in the upcoming years 2021, 2022, 2023.

Trustee Hirschi also mentioned the inequity of the TRL district, in Mason County there is 118 open hours, Grays Harbor has 282 open hours and there is a difference of less than 10,000 between the two



populations. Lewis County has 221 open hours and they have about 15,000 additional in population. Pacific County has 21,000 in population with 171 open hours. Thurston County has a population of all four counties combined and they have a total of 228 open hours.

Trustee Hall mentions the difference in FTE varies among the different size branches.

Trustee Hirschi states that she will bring back the statistics at the next Board meeting. Mason County covers their portion of the counties cost in addition of supporting the Service Center. McCleary branch alone has almost the same open hours as Mason County combined when the EAH hours are taken into account.

Trustee Varney asks if Cheryl will be including the revenue vs expenses in her strategic plan.

Cheryl states this will be included.

15. Future Agenda Items – None.

16. Executive Session pursuant to RCW 42.30.110, or requested or needed – None.

17. Adjournment at 7:23 p.m.

